

## 24NWLC56591 24NWLC56591

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-01

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24NWLC56591: AMERICAN EXPRESS NATIONAL BANK vs DANE DEVOGELAERE

### Tentative Ruling:

The Court has read and reviewed the Motion to Vacate Default Judgment and Motion to Stay filed by Defendant Dane DeVogelaere ("Defendant") on May 29, 2026. The Court has also reviewed the Opposition filed by Plaintiff American Express National Bank ("Plaintiff") and Defendant's reply. The Court has also reviewed all relevant court records.

Defendant states in his declaration, which was submitted under penalty of perjury, that he became aware of this lawsuit on May 22, 2026 when he received a Memorandum of Costs (MC-012). Defendant's Motion was filed days later on May 29, 2026.

The Court notes that Default was entered by the Clerk on July 2, 2025. Default Judgment was entered by the Clerk on July 19, 2025.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on April 15, 2025 creating a presumption of service under Evidence Code section 647. Defendant's declaration, which was signed under penalty of perjury, states that he was not personally served with the Summons and Complaint, or any other documents in this case until May 2026. Although Defendant's driver's license, which is attached to his declaration, identifies the same address as the address where Defendant was purportedly served, Defendant states that the physical description of the person served does not match his physical description.

The proof of service filed in this case describes the person served as "Gender: Male; Age: 36-40; Skin Tone: White; Hair: Brown; Eye Color: Brown; Height: 6 ft to 6ft 3 in; Weight 231-250 lbs." Defendant states under penalty of perjury that he has green eyes and blonde hair, and thus, he does not match the description provided by the process server.

Here, the Court finds that Defendant has rebutted the presumption of service and that there was no actual notice. "Actual notice," within the meaning of Code of Civil Procedure section 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

Pursuant to Code of Civil Procedure section 473.5, the Court GRANTS the Motion and vacates and sets aside the default judgment. The Court also vacates and sets aside the Writ of Execution that was issued by the Court on May 28, 2026. The Court grants Defendant 20 days leave to file a responsive pleading.

The Court encourages the parties to discuss Defendant's request to arbitrate. The Court continues Defendant's Motion to Stay for further briefing and hearing on October 1, 2026 at 10:30 a.m. in Department Y. The Court notes that the Complaint did not attach a copy of the agreement between the parties. The Court requests that Plaintiff submit a copy of the agreement if it opposes Defendant's request to arbitrate. To the extent the parties agree to arbitrate, the Court requests that Defendant take this motion off calendar

The Court also notes that the Defendant's Motion to Tax Costs, which is set for hearing on July 7, 2026, appears to be moot. At Defendant's request, the Court will take that motion off calendar or deny it without prejudice as moot.

Clerk to give notice.